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Case Number: 25NWCV01742 Hearing Date: September 15, 2026 Dept: P

MARIA JIMENEZ, ET AL. v.

FORD MOTOR COMPANY, ET AL.

CASE NO.: 25NWCV01742

HEARING: 09/15/2026 @

9:30 AM

#11

TENTATIVE ORDER

I.

Plaintiffs Maria Jimenez and Victoria

Elias's motion to compel further responses to requests for production, set one is MOOT.

II.

Plaintiffs' motion to compel further

responses to special interrogatories, set one, is GRANTED IN PART and DENIED IN PART.

III.

Plaintiffs' request for monetary

sanctions is DENIED.

Moving party to give notice.

Plaintiffs Maria Jimenez and Victoria Elias (Plaintiffs) move to compel further responses from Defendant Ford Motor Company (Defendant) to (1) requests for production (RPDs), set one and (2) special interrogatories (SROGs), set one.

Background

On May 14, 2025, Plaintiffs this lemon law action against Defendants Ford Motor Company, Ted Jones Ford, Inc. dba Ken Grody Ford Buena Park, and Does 1 through 10. The complaint alleges Plaintiffs experienced defects and nonconformities to warranty with their 2022 Ford Bronco, VIN: 3FMCR9B66NRE15996. (Complaint, ¶¶ 16, 17.) The complaint asserts three causes of action: (1) violation of Song-Beverly Act – breach of express warranty, (2) violation of the Song-Beverly Act section 1793.2, and (3) negligent repair.

On July 30, 2026 and on August 7, 2026, Plaintiffs filed Stipulated Protective Orders.

Plaintiffs' motion to compel further responses to RPDs, set one first came on for hearing on August 18, 2026. The Court continued the hearing on the motion based on potential supplemental production and requested supplemental briefing on the matter.

Legal Standard

Requests for Production

Under Code of Civil Procedure section 2031.260, subdivision (a), a party must respond to requests for production of documents within 30 days of service. Failure to do so waives all objections including privilege or on the protection of work product. (See Code Civ. Proc., § 2031.300, subd. (a).) Parties may move for a further response to requests for production of documents where a statement of compliance with the demand is incomplete, a representation of inability to comply is inadequate, incomplete, or evasive, or where an objection is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).)

Interrogatories

Under Code of Civil Procedure section 2030.300, subdivision

(a), “[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

(1) An answer to a particular interrogatory is evasive or incomplete.

(2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.

(3) An objection to an interrogatory is without merit or too general.”

“As a litigant, it is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 541.) “While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (Ibid.)

Motion to Compel Further Responses to Requests for Production

Discussion

Plaintiffs move to compel Defendant to serve further responses to RPDs, set one, nos. 16-18, 20-30, 45-46, 47, 49-54, and 55-59. Plaintiffs argue that Defendant unilaterally conditioned production on a protective order among other arguments.

On August 5, 2026, Defendant filed its opposition. In the opposition, Defendant states that Plaintiffs filed a stipulated protective order on July 30, 2026 and “[o]n July 28, 2026, and August 6, 2026, Ford produced confidential documents subject to the protective order.” (Perez Decl., ¶¶ 14-15.)

In Plaintiffs' supplemental brief, Plaintiffs acknowledge that Defendant produced some documents but argues that the production is incomplete. However, Plaintiffs do not address which requests were supplemented. Plaintiffs' recourse for supplemental responses is to file a new motion to compel further responses based on the 45-day deadline triggered upon the supplemental production. (Code Civ. Proc., § 2031.310, subd. (a).) This requires a new separate statement with the updated arguments. The Court continued this motion to determine whether certain requests were not supplemented and thus remained at issue. Since the supplemental briefing does not affirm what the supplemental responses were responsive to, the Court presumes that all responses were supplemented.

Accordingly, Plaintiffs' motion to compel further responses to requests for production, set one is MOOT.

Motion to Compel Further Responses to Special Interrogatories

Meet and Confer

The motion to compel further discovery shall be accompanied by a meet and confer declaration. (See Code Civ. Proc., § 2030.300, subd. (b)(1).) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (Code Civ. Proc., § 2016.040.)

The parties exchanged meet and confer letters. (Leite Decl., ¶¶ 5-7.) While a telephonic call or other meeting is preferred, the Court finds the meet and confer process adequate based on their efforts and the interests of judicial economy.

Discussion

Plaintiffs move to compel Defendant to provide further responses to SROGs, set one, nos. 10, 26, 47, 49 58.

SROGs, set one, no. 10

SROGs, set one, no. 10 requests facts supporting Defendant's contention that the Subject Vehicle does not qualify for repurchase. (Separate Statement.) Defendant responds that it makes that contention and lists certain documents that contain the supporting facts. (Separate Statement.)

Plaintiffs argue that the response is improper because it leaves Plaintiffs to speculate what facts within the documents are the relevant facts. Plaintiffs argue that this response does not properly invoke Code of Civil Procedure section 2030.230. Plaintiffs further establish good cause as it is plainly relevant as it relates to the Subject Vehicle.

Code of Civil Procedure section 2030.230 provides: "If the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained. This specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained. The responding party shall then afford to the propounding party a reasonable opportunity to examine, audit, or inspect these documents and to make copies, compilations, abstracts, or summaries of them."

The Court agrees that Defendant does not show that the response to this requires "the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party." (Code Civ. Proc., § 2030.230.) Moreover, even if Defendant did show that it applies, Defendant does not properly specify where in the documents Plaintiffs could locate and identify the responsive facts. Thus, the Court finds a further response to SROGS, set one, no. 10 warranted.

SROGs, set
one, no. 26

SROGs, set one, no. 26 is as follows:

INTERROGATORY NO. 26:

Describe all training that YOU provided from 2022 to the present regarding how to evaluate a pre-litigation repurchase request under the Song-Beverly Act.

(Separate Statement.) In response, Defendant refers to its Warranty Policy and Procedure Manuals for 2022 to present and, beyond that, objects to the SROG. (Separate Statement.)

Plaintiffs argue that this SROG is relevant and material. Plaintiffs argue that Defendant's production does non-responsive because it "does not identify, describe, summarize, or even confirm the existence or nonexistence of any training materials, sessions, modules, instruction, or criteria used to train its personnel on how to evaluate repurchase requests, nor the frequency of the training." (Mot., 7:11-13.)

Here, the Court's role is not to go through the production and determine whether the documents are responsive or not. However, to the extent that the response cites to documents, the response reflects the same issue as in No. 10, that it does not properly invoke Code of Civil Procedure section 2030.230. Thus, further responses are warranted.

SROGs, set
one, nos. 47 & 49-58

In part, the requests are as follows:

SPECIAL INTERROGATORY NO. 47.

Describe YOUR efforts to preserve relevant and discoverable information in this matter [...]

SPECIAL INTERROGATORY NO. 49.

IDENTIFY each person responsible for the operations, maintenance, expansion, archiving and upkeep of the network where YOUR customer contact call logs are electronically stored from 2022 to present.

SPECIAL INTERROGATORY NO. 51.

IDENTIFY each person responsible

for the operations, maintenance, expansion, archiving and upkeep of the network where YOUR policies and procedures for evaluating a repurchase or replacement under the Song-Beverly Act are electronically stored from 2022 to present.

SPECIAL INTERROGATORY NO. 56:

State YOUR document/data retention

or destruction policies that govern YOUR customer call logs from 2022 to present.

(Separate Statement.) In response, Defendant objects on the grounds that the SROGs are overbroad, unduly burdensome, irrelevant, not limited to the allegations, protected under attorney-client privilege and the work product doctrine. (Separate Statement.) Defendant also states that "Plaintiffs have not identified any documents that Ford has allegedly failed to produce in this case or to otherwise articulate why information relating to Ford's records management program that governs technical assistance cases from 2022 to present is relevant in this case. This is particularly true because no dealer contacted Ford regarding technical assistance for subject 2022 Ford Bronco." (Separate Statement.)

Plaintiffs argue No. 47 is relevant because preservation efforts show the adequacy of Defendant's production and spoliation issues. Plaintiffs argue that nos. 49-58 go to where and how Defendant maintains consumer complaint and warranty claim information as well as whether Defendant has withheld or destroyed responsive evidence which may be relevant to willfulness.

Here, the Court finds that Nos. 47 and 49-58 are not relevant to this action. Nos. 47 and 55-58 are not related to Plaintiffs' claims, but rather related to Defendant's information retention process. As argued by Defendant, Plaintiffs have not shown that there has been a loss or spoliation of documents in this action that requires facts regarding preservation efforts. Thus, Plaintiffs do not establish good cause.

As to Nos. 49-54, the Court sustains Defendant's overbreadth

objections. The SROGs do not relate to the Subject Vehicle, similar vehicles, or vehicles in the State of California. The SROGs relate to Defendant's record-keeping processes as a company and Plaintiffs do not show the relevance of such information. Plaintiffs' cited cases do not support the discoverability of the information sought here. (See, gen., Lukather v. General Motors, LLC (2010) 181 Cal.App.4th 1041, 1051; Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 136.) Therefore, the Court does not find further responses to Nos. 47 and 49-58 warranted.

Accordingly, Plaintiffs' motion to compel further responses to special interrogatories, set one is GRANTED IN PART and DENIED IN PART. Plaintiffs' motion is GRANTED as to SROGs, set one, nos. 10 and 26 and DENIED as to SROGs, set one, nos. 47 and 49-58.

Defendant is ORDERED to provide further responses, as described here, to special interrogatories, set one, nos. 10 and 26 within 30 days of this Order. This date may be extended pursuant to agreement between the parties.

Sanctions

Based on the Order finding in favor of each party on different SROGs, the Court does not award monetary sanctions.